

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB2062 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Mike Osburn

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

SENATE BILL NO. 2062

By: Pugh of the Senate

and

Osburn of the House

FLOOR SUBSTITUTE

An Act relating to prisons and reformatories;
amending 57 O.S. 2021, Section 95, which relates to
the delivery of sentenced persons; allowing
sentencing courts to issue self-reporting orders
under certain circumstances; directing defendants to
schedule self-reporting dates with the Department of
Corrections; making sheriffs and detention centers
ineligible for transportation reimbursement;
prohibiting sentencing courts from issuing self-
reporting orders for certain defendants; prohibiting
defendants from receiving certain incarceration
credits; directing the Department to notify county
jails if defendants fail to arrive at designated
reception centers; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 57 O.S. 2021, Section 95, is
amended to read as follows:

Section 95. A. ~~Any~~ Except as provided in subsection F of this
section, any person convicted of an offense against the laws of this
state and sentenced to imprisonment that is not to be served in a

1 county jail shall be transported by the sheriff of the county where
2 the person is sentenced, or transported by a designated
3 representative of the sheriff, to the Department of Corrections at
4 the Lexington Assessment and Reception Center or other location
5 designated by the Director of the Department of Corrections.

6 B. ~~Any~~ Except as provided in subsection F of this section, any
7 person convicted of an offense against the laws of this state and
8 sentenced to imprisonment that is not to be served in a county jail
9 and who is not housed in a county jail shall be transported by the
10 detention center, or transported by a designated representative of
11 the detention center, to the Department of Corrections at the
12 Lexington Assessment and Reception Center or other location
13 designated by the Director of the Department of Corrections.

14 C. The sheriff shall deliver the person to the Department at
15 such center together with:

16 1. A certified copy of the judgment and sentence from the court
17 ordering such imprisonment, unless the judgment and sentence
18 previously has been sent electronically by an authorized clerk of
19 the court;

20 2. A certificate setting forth the number of days served in the
21 county jail after the pronouncement of judgment and rendering of
22 sentence for the offenses committed;

1 3. A copy of any medical, dental, or mental health records of
2 the defendant for conditions reviewed or treated while in the
3 custody of the sheriff;

4 4. Any medication or medical or dental device prescribed for
5 the defendant while in the custody of the sheriff or for a
6 preexisting condition; and

7 5. A copy of the presentence investigation report, if a report
8 was prepared.

9 D. The Department of Corrections shall give the sheriff a
10 receipt for each person received into the custody of the Department.
11 The receipt shall be filed by the sheriff in the office of the clerk
12 of the court where the sentence was made.

13 E. The Department of Corrections shall reimburse the
14 transporting agency as follows:

15 1. Mileage from the county sheriff's office to the appropriate
16 reception center and back to the county sheriff's office; and

17 2. Hourly wage reimbursement for the transporting officer for
18 the hours of transport travel and time spent at the reception center
19 based on the transporting officer's normal hourly wage.

20 Reimbursement shall not exceed Thirty Dollars (\$30.00) an hour per
21 officer. Documentation of the officer's hourly wage shall accompany
22 all reimbursement requests to the Department.

1 The Department of Corrections shall have the authority to
2 promulgate rules and forms for the reimbursement procedures provided
3 in this section.

4 The Department of Corrections shall submit a quarterly report to
5 the Chair of the Senate Appropriations Committee and Chair of the
6 House of Representatives Appropriations and Budget Committee.

7 F. 1. Notwithstanding the provisions of subsections A and B of
8 this section and for counties with a population that exceeds one
9 hundred thousand (100,000) according to the latest Federal Decennial
10 Census, the sentencing court shall have the sole discretion to order
11 self-reporting whereby a defendant, who poses a low risk to public
12 safety as determined by factors including, but not limited to, the
13 nature of the committed offense, criminal history, and the ties of
14 the defendant to his or her community, may be allowed to self-report
15 to a designated Department of Corrections reception center for
16 commencement of the imprisonment sentence and bypass detention in a
17 county jail.

18 2. The defendant shall schedule a day and a time within five
19 (5) days of sentencing to be received by the Department and upon
20 arrival, the Department shall process any required documentation and
21 conduct initial assessments.

22 3. The sheriff or detention center personnel shall not be
23 responsible for transportation in such cases and shall not be
24

1 eligible for reimbursement as provided in subsection E of this
2 section.

3 4. The sentencing court shall not be authorized to issue an
4 order for self-reporting for a defendant who has been convicted of a
5 violent crime, as defined in Section 571 of Title 57 of the Oklahoma
6 Statutes. Furthermore, the defendant shall not receive credit for
7 serving any days outside the county jail or outside the custody of
8 the Department to include time served, deferred reception credits,
9 earned credits, and achievement credits.

10 5. Due to the defendant never being in custody, the Department
11 shall be directed to contact the county jail if the defendant fails
12 to arrive at the designated reception center and shall not be
13 responsible for the management of locating and placing the defendant
14 into custody.

15 SECTION 2. This act shall become effective November 1, 2026.

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